

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.38628 of 2023

Muhammad Khan

Versus

Mst. Anwar Bibi & others

J U D G M E N T

Date of hearing: 14.05.2026.
Petitioner by: Ch. Ijaz Akbar, Advocate.
Respondent No.1 by: M/s. Rana Nawazish Ali Khan, Wasim
Abbas and Rai Qaiser Imran Khan,
Advocates.

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through instant petition, petitioner has assailed the judgment and decree dated 20.12.2022 passed by the learned Judge Family Court, Chiniot, as well as the judgment and decree dated 27.05.2023 rendered by the learned Additional District Judge, Chiniot, whereby the suit instituted by Mst. Anwar Bibi / respondent No.1 for recovery of dower in the shape of a constructed house measuring 5-Marlas situated at Canada Colony, Chak No.126/JB, Tehsil and District Chiniot, along with maintenance for the *Iddat* period, was decreed and the appeal preferred by the petitioner was partially accepted only to the extent of reduction of maintenance allowance while the decree pertaining to dower was maintained.

2. Briefly stated, respondent No.1 was married to the petitioner on 03.07.2017 and, according to her, the petitioner on the same day executed an agreement (*Exh.P-5*) whereby he agreed to give her a constructed house measuring 5-Marlas situated at Canada Colony, Chak No.126/JB, Tehsil and District Chiniot, as Haq Mahr and further undertook to pay Rs.300,000/- in case of divorce. After dissolution of marriage on 11.12.2021, respondent No.1 instituted

a suit for recovery of dower, its alternate market value, maintenance for *Iddat* period and Rs.300,000/-. The suit was contested by the petitioner who denied execution of *Exh.P-5* and pleaded that the disputed house belonged to his first wife. The learned Family Court decreed the suit vide judgment and decree dated 20.12.2022, whereafter the appeal filed by the petitioner was partially accepted by the learned Additional District Judge, Chiniot, vide judgment and decree dated 27.05.2023 only to the extent of reduction of maintenance allowance, while the decree regarding dower was maintained. Hence, this petition.

3. Learned counsel for the petitioner contends that both the learned Courts below failed to properly appreciate the evidence available on record and returned findings which are the result of misreading and non-reading of evidence. He argues that *Exh.P-5* was written on an ordinary stamp paper of Rs.100/- without any mention of purpose of issuance and, therefore, in view of the Government's E-Stamp policy introduced in the year 2014, the same could not legally be relied upon. He further contends that the *Nikahnama* itself mentions dower only to the extent of Rs.5,000/- and contains no reference to any immovable property, thus demonstrating that the subsequent agreement is a fabricated and afterthought document. Learned counsel further submits that according to the own statement of respondent No.1, the agreement was written at about 10/11 a.m. on 03.07.2017 whereas the *Nikah* was solemnized in the evening of the same day, which circumstance, according to him, exposes the falsity of the alleged agreement. He also argues that respondent No.1 never asserted any claim regarding the house during the subsistence of marriage for about four years and the suit was filed only after dissolution of marriage out of grudge. He further submits that if the agreement is construed to be a stipulation linked with divorce, the Family Court lacked jurisdiction to adjudicate the matter. Lastly, it is contended that the petitioner was not owner of the disputed house and the

same allegedly belonged to his first wife, therefore, no decree regarding delivery of possession or payment of market value thereof could legally be passed against him.

4. Conversely, learned counsel for respondent No.1 has supported the impugned judgments and decrees and submits that execution of *Exh.P-5* stood fully proved through the testimony of both marginal witnesses i.e. PW-2 and PW-3, whose evidence remained unimpeached during cross-examination. He contends that the findings recorded by both the learned Courts below are concurrent findings of fact based upon proper appreciation of evidence and no case for interference in constitutional jurisdiction is made out.

5. Arguments heard. Available record perused.

6. The foremost objection raised by learned counsel for the petitioner relates to jurisdiction of the Family Court. The contention, however, is wholly misconceived. Item No.2 of the Schedule appended to the West Pakistan Family Courts Act, 1964 expressly confers exclusive jurisdiction upon the Family Court in matters relating to dower. A bare reading of *Exh.P-5* leaves little room for ambiguity that the first clause thereof unequivocally fixes the disputed house as *Haq Mahr* in favour of respondent No.1. The claim regarding the house, therefore, directly pertains to dower and squarely falls within the exclusive jurisdiction of the Family Court. The attempt made by the petitioner to characterize the transaction as a contractual stipulation linked with divorce is factually unsustainable because *Exh.P-5* contains two distinct stipulations; the first pertains to fixation of the house as dower at the time of marriage, whereas the second pertains to payment of Rs.300,000/- in case divorce is pronounced by the husband. The present *lis* concerns the first stipulation relating to dower. The reliance placed upon *Shaukat Hayat Khan v. Additional District Judge, Mianwali and 2 others* (2013 CLC 601) is, therefore, entirely misplaced because the agreement involved therein related purely to payment

of contractual compensation and not to fixation of dower. The said authority is clearly distinguishable on facts and has rightly been distinguished by the learned Appellate Court.

7. The principal controversy in the present matter revolves around authenticity and proof of *Exh.P-5*. The record reveals that respondent No.1 produced both marginal witnesses of the document, namely PW-2 Qaiser Mehmood and PW-3 Altaf Hussain, who categorically deposed regarding execution of the agreement by the Petitioner of his own free will. Their depositions remained consistent, natural and confidence-inspiring. Despite lengthy cross-examination, no material contradiction, inconsistency or circumstance impairing their credibility could be elicited. Their testimony, therefore, remained intact and fully corroborative of the version advanced by Respondent No.1.

8. Under Articles 17 and 79 of the *Qanun-e-Shahadat* Order, 1984, a private document may validly be proved through its attesting witnesses and once execution thereof stands proved through legally admissible evidence, the burden shifts upon the party alleging forgery to substantiate such allegation through cogent and convincing evidence. However, it is equally important to observe that, in family matters, the proof of a dower deed is not to be subjected to the rigid and technical requirements envisaged under Articles 17 and 79 of the *Qanun-e-Shahadat*, 1984. Reliance has been placed upon the decision of august Supreme Court rendered in *Mushtaq and others v. Mst. Fatima and others* (PLD 2025 Supreme Court 434), relevant excerpt is as follows:

“3. ...Notably, the Family Courts operate outside the limitations typically imposed by the Code of Civil Procedure, 1908, and the more stringent standards set forth by the *Qanun-e-Shahadat*, 1984. This divergence from conventional judicial procedures holds particular significance when we examine Article 79 of the *Qanun-e-Shahadat*, 1984. This Article mandates that at least two attesting witnesses must be produced to establish the execution of financial documents or those about future obligations. However, in matters of family law, such as dower, this requirement is exempted under

Section 17 of the Family Courts Act of 1964. The Family Court's jurisdiction leans towards an inquisitorial approach designed to encourage amicable settlements while maintaining a focus on the familial context. Consequently, the evidentiary requirements to prove the existence and validity of a dower deed are significantly less stringent than those encountered in traditional civil litigation..."

Moreover, allegations of forgery, by their very nature, cannot be accepted on the basis of bald assertions or speculative pleas. They must be affirmatively established through reliable material. The petitioner failed to discharge the said burden. Rather, his own conduct materially undermined the defence raised by him. During cross-examination, he expressly objected to forensic examination of his signatures and thumb impression appearing on *Exh.P-5*. Such conduct is not a mere procedural irregularity but a highly significant evidentiary circumstance. A litigant who alleges forgery of a document would ordinarily be expected to welcome every legitimate process capable of scientifically disproving the document. Resistance to forensic verification by the very person alleging forgery naturally invites an adverse inference under Article 129(g) of the *Qanun-e-Shahadat*, 1984. The law does not permit a party to obstruct the discovery of truth and thereafter seek benefit from the resulting evidentiary vacuum. The refusal of the Petitioner to permit forensic examination substantially erodes the credibility of his plea of fabrication and lends support to the concurrent findings recorded by the Courts below.

9. The record further reveals that respondent No.1 had moved an application for summoning the stamp vendor Umair Khalid for verification of the stamp paper. Surprisingly, the said application was vehemently opposed by the petitioner. Although the application was ultimately dismissed by the learned Family Court, yet the persistent opposition by the petitioner towards every possible avenue of independent verification is itself a circumstance of considerable significance. A litigant genuinely asserting forgery

would ordinarily facilitate production of the best available evidence rather than obstruct it. It is a settled principle of evidence that where a party withholds best available evidence within its possession, the Court may legitimately draw an adverse inference against such party. The petitioner neither produced original title document allegedly executed in favour of his first wife nor examined alleged vendor to substantiate the plea raised by him. The conduct of the petitioner, viewed cumulatively, unmistakably militates against the defence raised by him.

10. The contention that Exh.P-5 is fabricated merely because the *Nikahnama* mentions dower as Rs.5,000/- and contains no reference to the disputed house is equally devoid of force. Under settled principles of Muhammadan Law, dower may be fixed orally or through a separate written agreement either before, at the time of, or even after marriage. The *Nikahnama* is undoubtedly an important matrimonial document, yet it is not an exhaustive or exclusive repository of every stipulation relating to dower. In social practice, particularly where immovable property is agreed to be given as dower, execution of a separate written instrument is neither unusual nor legally impermissible. Once such an agreement is independently proved in accordance with law, its enforceability cannot be denied merely because the *Nikahnama* is silent in that regard. The two documents can legally coexist and are required to be read harmoniously. It is lawful for a husband to enhance the dower. Reliance is placed upon *Mian Aziz A. Sheikh v. The Commissioner of Income-Tax Investigation, Lahore* (PLD 1989 Supreme Court 613), wherein the august Court, while dealing with a case involving subsequent enhancement of dower by the husband, reproduced excerpts from certain well-recognized treatises on Muslim Law acknowledging the husband's lawful authority to increase the amount of dower after marriage. The relevant paragraphs are reproduced below:

14. Although the subject under discussion namely, the rules of evidence in proof of increase of dower by Muslim husband are available in several well-known treaties on Muslim Law but none of the learner: counsel had time enough to cite all of them. Learned counsel for the appellant has relied on the following observations in Syed Ameer Ali's work (Pakistan Edition) 1965 Vo1.2 page 423:

... .. Under the Islamic system there is no community of goods between husband and wife. She is absolute owner of her own property and of whatever the husband settles on her as dower. The terms of the settlement are agreed to before marriage, but when these have been omitted, they may be settled subsequently. The terms of the contract may be varied at any time during the continuance of the marriage by mutual consent. The wife has the power either to relinquish the whole dower-debt, or make an abatement in her husband's favour- whilst the husband, similarly, has the power of making additions to her settlement or dower...

15. He also relied on Muslim Law by Saksena, Third Edition page 229. The passage reads as follows:-

"It depends upon the parties to modify the amount of dower any time they like. and likewise an addition can be made to the dower which has already been settled at the marriage (Mst Nashiban Bi v Mst. Iqbal Begum 1935 Lah.816), with the consent of the parties, and the parties would be bound by the subsequent contract (Karamunnissa v. Hussaini, 3 A11.266; Ibrahim Bhurwa v. Isa Rasul, 41 Bom. 5, 16);...The new contract for an addition to the dower is, by a large fiction, considered as a part of the old marriage contract (Jahuran Bibi v. Sakina Bibi, 58 C L C 251). Thus the dower can be fixed at Any time before or after the marriage and the husband can increase the amount of the dower at any time during the continuance of marriage. For purpose increasing the dower a declaration by the husband is quite, sufficient under the Muslim Law (Chars Pir v. Fakar Shah, 1940 Lah.104).

16. A short passage from Hedaya (2nd Edition Vol. I page 45) Commentary on the Muslim Law has also been relied upon:

"Case of an addition made to the dower after marriage.-If a man makes any addition to the dower in favour of his wife subsequent to the contract, such addition is binding upon him."

11. Likewise, chronology highlighted by learned counsel for the petitioner does not advance his case. The evidence of PW-1 itself reveals that the agreement was written during forenoon of 03.07.2017 whereas the Nikah was solemnized in the evening of the

same day. This circumstance, instead of creating suspicion, actually accords with ordinary human conduct because stipulations relating to dower are naturally settled prior to solemnization of marriage. The opening recital of *Exh.P-5* itself indicates that the agreement was executed contemporaneously with the marriage negotiations. The learned Courts below were, therefore, justified in treating the said chronology as corroborative rather than destructive of the respondent's case. Even otherwise, it is by now a settled proposition of law that dower may validly be fixed before marriage, at the time of marriage or even thereafter. Reliance is placed upon *Ghania Hassan v. Shahid Hussain Shahid and another* (2016 SCMR 2170), wherein, after discussing various precedents on the subject, the august Supreme Court reiterated that:

9. ...An overview of the above reveals that it is now a settled proposition of law that the dower can be fixed before marriage and at time of marriage or thereafter. Furthermore, the dower once settled can always be increased by the husband or by an agreement between the parties.

12. The argument that respondent No.1 did not assert her claim during subsistence of marriage is also legally untenable. Dower constitutes a financial obligation imposed upon the husband in favour of the wife and is treated in law as a debt. Dower under Muhammadan Law is not a bounty dependent upon the will of husband rather it is a mandatory incident of marriage and legally enforceable obligation. Mere non-assertion thereof during subsistence of marital relations neither extinguishes the right nor constitutes waiver thereof. In the social realities of our society, many women refrain from demanding dower during continuance of marriage for emotional, domestic and societal reasons. Such restraint cannot legally be construed against them. The right to recover dower survives dissolution of marriage and remains enforceable in accordance with law. Reference is made to *Mst. Manzoor Elahi v. Muhammad Nawaz and others* (2002 MLD 988), wherein it was held by this Court that:

7. Dower money is a debt payable to a wife and she is within her legal rights to press for its payment. Mahar or Dower is that financial gain which the wife is entitled to receive from her husband by virtue of the marriage contract itself whether named or not in the contract of marriage, in which case proper dower (Mahir Mithl) becomes due.

8. In case *Mst. Bakht-e-Rawida v. Ghulam Habib and 2 others* (PLD 1992 Karachi 46), the Honourable Mr. Justice Wajihuddin Ahmed, Judge of the Karachi High Court observed that the dower is essentially the right of the wife and not of her parents.

9. Dower money is a debt payable to a wife and she is within her legal right to even press for its payment, as observed in case of *Muhammad Mumtaz v. Mst. Parveen Akhtar and another* (1985 CLC 415).

13. Equally meritless is the plea raised by the petitioner regarding ownership of the disputed house. The petitioner merely produced a photocopy of the alleged agreement to sell in favour of his first wife and neither produced the original document nor examined any witness in proof thereof. In contrast, *Exh.P-6*, i.e., receipt dated 23.04.2015, clearly demonstrates that the Petitioner himself paid Rs.190,000/- to Riaz Ahmad towards purchase of the disputed house and possession thereof was delivered to him. Significantly, the CNIC particulars mentioned therein correspond to those of the Petitioner. During cross-examination, he admitted both the date of *Exh.P-6* and the fact that he had never challenged the same before any forum. This document, therefore, constitutes strong corroborative evidence regarding ownership and possession of the Petitioner over the disputed property.

14. Moreover, the defence raised by the petitioner stands further demolished by his own documents. The plaint filed by his first wife Shaista Perveen reveals that she had allegedly been ousted from the matrimonial home approximately three years prior to institution of her suit in July 2017. The said circumstance renders wholly improbable the plea that she purchased the disputed property in July 2017 from the same vendor who had admittedly transferred possession thereof to the petitioner in the year 2015.

Thus, the defence set up by the petitioner not only remained unproved but stood contradicted by the record itself.

15. The objection regarding non-utilization of E-stamp paper is also legally insignificant. The E-Stamp policy pertains primarily to fiscal regulation and collection of stamp duty. Even assuming some deficiency in the denomination or nature of stamp paper, the same would not ipso facto invalidate the underlying transaction or render the agreement void ab initio. No provision of law has been pointed out which declares a dower agreement void merely because it was written on ordinary stamp paper instead of E-stamp paper. Technical objections relating to form of documentation cannot be permitted to defeat substantive matrimonial rights once underlying transaction stands independently proved through trustworthy evidence.

16. So far as maintenance allowance is concerned, the learned Appellate Court rightly corrected the error committed by the learned Family Court by restoring maintenance at the rate of Rs.4,000/- per month for the *Iddat* period in accordance with the earlier consent order dated 05.11.2021. Once the parties had mutually settled the issue of maintenance through a consent order, the learned Family Court was not justified in re-determining the same without assigning legally sustainable reasons. The learned Appellate Court, therefore, rightly rectified the said error and no exception can be taken thereto.

17. An overall appraisal of the record leaves no manner of doubt that both the learned Courts below conducted a comprehensive and legally sound evaluation of the oral as well as documentary evidence available on record. The findings regarding execution of *Exh.P-5*, ownership and possession of the disputed house, and entitlement of respondent No.1 to recover the same as dower are concurrent findings of fact resting upon sufficient and reliable evidence. Learned counsel for the petitioner has been unable to point out any material misreading or non-reading of evidence,

jurisdictional defect, procedural irregularity, or perversity warranting interference by this Court in exercise of constitutional jurisdiction. The constitutional jurisdiction of this Court cannot be invoked merely to secure a reappraisal of evidence or to substitute one plausible view with another.

18. It may be observed that the constitutional jurisdiction of this Court under Article 199 of the Constitution is supervisory and corrective in nature and is not intended to serve as a substitute for appellate jurisdiction. It is by now firmly settled that while exercising constitutional jurisdiction this Court does not ordinarily reappraise evidence or upset concurrent findings of fact unless it is shown that the findings recorded by the Courts below suffer from patent illegality, jurisdictional defect, gross misreading or non-reading of evidence, arbitrariness, or perversity resulting in miscarriage of justice. The High Court, while exercising jurisdiction under Article 199 of the Constitution, is not expected to convert itself into a third forum of factual adjudication merely because another view of the evidence may also be possible.

19. For what has been discussed above, this petition, being devoid of merit, is hereby **dismissed**. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

Sultan / A.H.S.